Privacy Policy

Last updated: *January 1, 2024*

VITA GAMES STUDIO PTE. LTD. respects the privacy of the visitors to our digital properties and the users of our products, and we are committed to protecting it through our compliance with this Privacy Policy ("Policy"). This Policy explains how VITA GAMES STUDIO PTE. LTD. and its subsidiaries and affiliated companies ("VSP," "we," "our" or "us") collect, use, and share your personal information when you access or use our websites, our mobile applications ("Apps"), or any associated features, content, or pages owned or operated by us (collectively, "Services") that link to this Policy. This Policy does not address the privacy practices of any third parties that we do not own or control.

Please read this Policy and our Terms of Service, available at https://vitastudio.ai/tos.html. By using our Services, you acknowledge that we will collect and process your personal information in accordance with this Privacy Policy, and you consent to the practices and terms set forth in our Terms of Service. If you do not feel comfortable with any part of this Privacy Policy or our Terms, please discontinue use of the Services or engaging with VITA GAMES STUDIO immediately.

We may modify this Privacy Policy from time to time. We will notify you of material changes to this Policy by posting the new version on the Services before the effective date of the changes. If you do not agree with the proposed changes, you should discontinue your use of the Services prior to the time the new Policy takes effect. If you continue using the Services after the new terms take effect, you understand and acknowledge that the modified Privacy Policy will apply.

Contents

1. Personal Information That We Collect
2. How We Use Your Personal Information
3. How We Share Your Personal Information
4. Cookies and Similar Technologies ("Tracking Technologies")
5. Your Privacy Rights and Choices
6. Security
7. Transfers of Your Personal Information
8. Retention
9. Children
10. California Consumer Privacy Notice
11. Additional Notice to Individuals in the European Economic Area, United Kingdom, and Switzerland
12. Service Providers and Partners
13. Contact Us

1. Personal Information That We Collect

The definition of personal information (used interchangeably in this Policy with "personal data") depends on the applicable law based on your physical location. Only the definition that applies to your physical location will apply

to you under this Policy. We may collect personal information from you directly, from third parties, from business partners, or from publicly available sources.

Information You Voluntarily Provide Us. Personal information that we, or service providers performing services on our behalf, may collect from you include the following:

a) **Account Information**

When you use our Services, you may register an account with us to track your progress and to sync your activity across devices. To register an account, you may be asked to provide certain personal information to us, including your name, email address, and password. You are solely responsible for ensuring your account information is correct and up-to-date.

b) **Optional Information You Provide To Us**

We may collect any personal information you provide to us when you use our Services. For example, you may provide additional account information, such as your language preferences. You may also provide information when participating in surveys, sweepstakes, contests, or events, such as your contact information. You are solely responsible for ensuring the information you provide to us is correct and up-to-date.

c) **Customer Service**

We collect the personal information you provide to us when you contact us for customer service, to provide feedback, or to request information. For example, when you use our feedback and choose to upload pictures, we will collect the picture information you provide for problem analysis.

Information We Automatically Collect. To the extent permitted under applicable law, we may automatically collect certain types of personal information about you when you use or interact with our Services.

a) **Activity and Usage Data**

While accessing or using the Services, we may automatically collect information about how you interact with the Services. Such information may include your Internet Protocol ("IP") address, device identifier, advertising identifier, MAC address, operating system, browser type, language preferences, referring and exiting pages, crash data, location data, purchasing activity, and other data regarding your activities on the Services. For more information, see Section 4 below on **Cookies and Similar Technologies ("Tracking Technologies")**.

b) Device Information

If you access the Services through a mobile device (e.g. a smart phone or tablet), we may be able to identify your device's unique device identifier, MAC address, devices' operating system, devices' physical location (including geolocation, beacon-based location, and GPS location, depending on your settings) of your device, your mobile network information, and your mobile device's advertising ID, etc. You may disable our use of certain location data through your device or browser settings in iOS or Android privacy settings.

We collect the following device information for the following purposes:

No.	What we collect	How we use it
(1)	IMEI	Analytics, fraud prevention, security and compliance App functionality Advertising and marketing

(2)	IMSI	Analytics, fraud prevention, security and compliance App functionality Advertising and marketing
(3)	eUICC ID	Analytics, fraud prevention, security and compliance App functionality Advertising and marketing
(4)	GMS	Analytics, fraud prevention, security and compliance App functionality Advertising and marketing
(5)	SIM	Analytics, fraud prevention, security and compliance App functionality Advertising and marketing

Information From Third Parties

Information From Social Media Platforms

You may also choose to create an account with us using your Facebook or Google account credentials. When you log in using your Facebook or Google account, you authorize Facebook or Google to provide us with your personal information such as your name, profile picture, email address, language preference, and other information as listed in the authorization.

2. How We Use Your Personal Information

We will only use your personal information as described in this Policy or as disclosed to you prior to such processing taking place. The purposes for which we may use your personal information include:

a) To Provide Our Services

We use your personal information to provide you with the Apps and any other services, purchases or requests in connection with the Services you request. This may include processing transactions, providing you with the requested features, syncing your data across your devices logged into your account, and providing you with customer service.

b) To Personalize Your Experience

We may process your information to personalize the Services for you. For example, we use your language preferences and country location to display the correct language and time zone in the Services. We also use certain information about your device (such as operating system version and screen resolution information) to optimize the display of pictures on your screen.

c) To Send You Service-Related Communications

We will use your information (such as contact information) to send you communications about your account, requested transactions, and changes in our policies. Please note that you may not opt-out of such communications, which are necessary to keep you informed about important updates about your account and the Services.

d) To Conduct Analytics and Other Internal Purposes

We may use your personal information to conduct analytics. This can be used for quality control, internal auditing, and to measure how our Apps, Services, and ad campaigns are performing. We also use your personal information to accumulate and report aggregate statistical information in connection with the Apps, Services and user activity, in order to help us operate, enhance and improve our Services.

e) **To Ensure Security of our Services**

We may use your personal information for the purposes of identity verification, customer service, security protection, combatting spam, malware, and malicious activity, fraud monitoring, archiving and backups, ensuring the security of the Apps and Services that we provide to you.

f) **To Conduct Research and Development**

We may process your personal information to improve our existing Services and help us design new ones. When we do so, we may implement security measures and safeguards to protect the privacy of your personal information. For example, we may institute technical safeguards or administrative safeguards, such as restricting access to personal information to only those who need access to conduct the research and development functions.

g) **To Promote Our Services**

We use your personal information for our marketing activities. For example, we may conduct targeted marketing and send you information about our and our partners' products, events, and market studies that may be of interest to you.

h) **To Maintain Legal and Regulatory Compliance**

Our Services are subject to certain laws and regulations which may require us to process your personal information. For example, we process your personal information to pay our taxes, to fulfill our business obligations, and to manage risk as required under applicable law.

i) **To Enforce Compliance with Our Terms, Agreements and Policies.**

When you access or use our Services, you are bound to our Terms of Service, available at https://vitastudio.ai/tos.html. To ensure you comply with them, we process your personal information by actively monitoring, investigating, preventing and mitigating any alleged or actual prohibited, illicit or illegal activities on our Services. Subject to the applicable law, we may also process your personal information to investigate, prevent or mitigate violations of our internal terms, agreements or policies and enforce our agreements with third parties and business partners.

3. **How We Share Your Personal Information**

We may share your personal information in the following circumstances.

a) **Within Our Corporate Organization**

We are a multinational organization, with cross-border legal entities and management structures. We may share your personal information within our corporate organization, including to our parent, subsidiary and affiliated companies to facilitate the Services as well as for the purpose of management and analysis; however, we will require that your personal information still be handled in the manner described herein.

b) **With Our Service Providers**

We may use third parties to perform certain functions on our behalf to provide you with the Services such as:

- to process payments and complete transactions you request, such as payments for our subscription service, which is processed by Apple (App Store) or Google (Google Play Store);
- to process and store data, including your personal information;
- to provide security for our Services; and
- to conduct market research.

We have agreements with third-party service providers in place to ensure they use adequate safeguards when processing your personal information.

c) **Merger, Acquisition, or Other Business Transaction**

We may disclose and transfer your personal information to a subsequent owner, co-owner, or operator of our Services, or in connection with a contemplated or agreed upon merger, acquisition, consolidation, restructuring, or the sale of substantially all our interests and/or assets (i.e., a bankruptcy proceeding). We shall require the subsequent owner, co-owner, or operator in possession of your personal information to continue to be subject to this Privacy Policy; otherwise, we shall request that they obtain the necessary consent from you. We reserve the right, as part of this type of transaction, to transfer or assign personal information and other information we have collected from users of the Services to buyers, service providers, advisors, potential transactional partners or other third parties in connection with the advisors, potential transactional partners or other third parties of a corporate transaction. By engaging with us or using our Services, you understand and agree to our assignment or transfer of rights to your personal information. If you would like for your information to not be included in such a transfer, please contact us as described below and notify us of your request to be opted-out of such transfers.

d) **Legal Obligations and Safety**

We may disclose your personal information if it is reasonably necessary to:

- Comply with a valid legal process (e.g., subpoenas, warrants, court orders, etc.);
- Comply with valid requests or investigations by public authorities;
- Comply with applicable laws or regulations;
- Enforce our policies, agreements, and terms, whether in litigation, other disputes, or otherwise;
- Protect our legitimate interests, including legal interests;
- Protect the security or integrity of the Services; or
- Protect the rights, property, or safety of you, other users, employees, partners and affiliates, or other natural persons.

We will, at our discretion, provide you with advance notice if we are compelled to disclose your personal information to law enforcement, public authorities, or other governmental entities, unless we are prohibited from doing so by governmental entities or the law.

e) **With Your Consent**

We may transfer your personal information for other reasons after obtaining your consent.

4. **Cookies and Similar Technologies (“Tracking Technologies”)**

a) **What are cookies and tracking technologies?**

Cookies are small data files, typically of letters and numbers, that are placed by a web server on your device. We and companies we work with may use cookies and similar technologies, including pixel tags, web beacons, mobile analytics features, and mobile identifiers (collectively, “tracking technologies”) to collect information for many reasons, such as to keep you logged in to your account, remember your preferences and settings, analyze usage

of our Services, measure the performance of our Services and advertising campaigns, and ensure security on our Services. Some of the functions performed by tracking technologies are strictly necessary for us to be able to offer you our Services, while others provide us with valuable insight about how we can improve or market our Services.

b) What types of tracking technologies do we use?

We use the types of tracking technologies described below on our Services:

Types of Tracking Technologies	Description
Strictly Necessary	Some of the tracking technologies we use are necessary to provide our Services to you. For example, they help you: navigate from page to page; stay logged into your account; and support and enable security features. Without such tracking technologies, some of our Services cannot be provided to you.
Functional	Functional tracking technologies collect information about how you use our Services, provide you with certain functions on our Services, and remember your preferences.
Analytics, Performance and Research	These tracking technologies help us understand how well our Services are doing. They collect information about your use and interaction with our Services so that we can continue to improve and expand our Services.
Marketing	Marketing tracking technologies allow us to collect information about your interactions with our marketing activities, such as parts of our website and our emails. They help us measure the performance of our Services and advertising campaigns. In addition to the marketing tracking technologies deployed by us, third parties may use marketing tracking technologies to collect information about your use of our website so that they can provide advertising about products and services tailored to your interests on our website, or on other websites.

c) How to manage tracking technologies

We use third-party tracking technologies that allow us to automatically collect information through our Services that can recognize your device both when it visits our Services and when it visits other websites or mobile apps. We encourage you to check the websites of any third-party tracking technology providers for more information about how they use the information they collect.

Below we describe how you can manage tracking technologies on our Services:

1) Through Your Browser

You can enable, disable or delete tracking technologies via your browser settings. To do this, follow the instructions provided by your browser, usually located within the “Help”, “Tools” or “Edit” settings of your browser or mobile device. Please be aware that if you set disable tracking technologies on your browser, you may not be able to access secure areas of the Services and parts of the Services may also not work properly (e.g., preferences, referral links).

Many browser manufacturers provide helpful information about cookie management, including, but not limited to:

- Google Chrome
- Internet Explorer
- Mozilla Firefox
- Safari (Desktop) or Safari (Mobile)
- Android Browser
- Opera

If you use a different browser than those listed above, please refer to your specific browser’s documentation or check out http://www.allaboutcookies.org/browsers/index.html to learn more about different browsers. You can also find out more information about how to change your browser cookie settings at www.allaboutcookies.org. If you reside in European Economic Area, Switzerland, or the United Kingdom, you may opt-out of online behavioral advertising served by the European Interactive Digital Advertising Alliance’s participating member organizations by visiting youronlinechoices.eu/.

You may also opt-out of cookies within web browsers by visiting industry-created opt-out platforms such as http://networkadvertising.org/managing/opt_out.asp and/or https://optout.aboutads.info/?c=2&lang=EN, or if you are in the European Union, http://www.youronlinechoices.eu/. You can also click on the AdChoices logo within an advertisement (where available).

2) Through Your Mobile Settings

When you use our Apps, we or our third-party marketing partners may use one or more of several different identifiers for your mobile device, including Apple Identifier For Advertising (IDFA) or Android Advertising ID (AAID), to target and deliver ads to you in our app or other apps. This means that your device identifier may be accessed by third-party ad networks and used to (a) help manage the number and types of ads you see; (b) track the source of installs related to ads seen in other apps; and (c) identify your interests and behavior and target advertising to you based on those interests and behavior. You may be able to control or limit mobile tracking technologies in your mobile device settings.

Apple requires app developers to ask for permission before they can track your activity across third-party apps or websites in order to target advertising to you, measure your actions due to advertising, or to share your information with data brokers. If you previously gave our mobile app permission to track, you can tell our app to stop tracking your activity. On iOS or iPadOS, go to Settings, tap on our app, then tap to turn off Allow Tracking. You can also reset your IDFA from your mobile device's settings page, which will prevent continued use of existing behavioral data tied to your previous IDFA.

If you have an Android device, and are running Android 12 or above, you can delete your AAID permanently by opening Settings, navigating to Privacy > Ads, tapping "Delete advertising ID," then tapping it again on the next page to confirm. This will prevent any app on your phone from accessing it in the future. Please note that if you do so, you will still see advertisements, but they will not be tailored to your inferred interests.

Additionally, you may also access industry-provided opt-out tools, although they are not tailored to our mobile applications. For instance, you may visit http://aboutads.info/appchoices to learn about and download the Digital Advertising Alliance's free consumer choice app, AppChoices, which allows you to opt-out directly from companies listed in the app. Where applicable, the AppChoices app also allows California residents to submit requests to opt-out of the sale of personal information to the companies listed in the AppChoices app under the California Consumer Privacy Act (CCPA).

3) **Through Third Parties**

Within the "Service Providers and Partners" section below, which lists our service providers and partners, you may find links to each third party's website for information about how they use tracking technologies to collect and use your information, and how you may be able to opt-out of their tracking.

5. **Your Privacy Rights and Choices**

a) **Your Choices**

1) **Marketing Communications.**

We may use your personal information to send you messages about new products and services, events, or other information that may be of interest to you, whether through email or other methods. If you do not wish to receive such information, you can change your account settings or click the "unsubscribe" button in email communications. Please note that you will not be able to opt-out of receiving non-promotional, transactional communications about your account or the Services.

2) **Correct or Update Your Information.**

You may make changes to the information you provided in conjunction with your account by logging in to your account and changing the applicable information. If you are not able to do so by logging into your account, or if you wish to terminate and delete your account, you may contact us at Support@vitastudio.ai. Following receipt of a request from you, we will take reasonable steps to make changes or delete your information as required under the applicable law.

b) **Your Privacy Rights**

Depending on applicable law where you reside or are located, you may be able to assert additional privacy rights identified below with respect to your personal information. If any of the rights provided to you under the law that governs your personal information, we have absolute discretion in providing you with those rights. Please refer to the "What Rights Apply" section to determine the rights you have in the jurisdiction you reside.

Please note, your rights in relation to your personal information are not absolute. Depending upon the applicable law, access to your rights under the applicable law may be denied: (i) when denial of the request is required or authorized by law; (ii) when granting the request would have a negative impact on another's privacy; (iii) to protect our rights and properties; (iv) where the request if frivolous or vexatious, or for other reasons.

(a) **Right to Know/Access.** You may have the right to obtain a copy, or a list of categories of the personal information that we hold about you, as well as other supplementary information, such as the purposes of processing, and the entities to whom we disclose your personal information.

(b) **Right to Correct/Rectification.** You may have the right to correct any of your personal information in our records and systems. You may request us to rectify, correct or update any of your personal information held by us that is inaccurate.

(c) **Right to Delete/Erasure.** Under certain circumstances, you may have the right to request that we delete the personal information that we hold about you. This right is not absolute, and we may refuse your right to delete if it is reasonably necessary for us to provide a service requested by you; to perform a contract between us; to maintain functionality and ensure security of our systems; to enable solely expected internal uses of your personal information; to exercise a right provided by law; to comply with a legal obligation, or if there are compelling legitimate grounds for keeping your personal information.

(d) **Right to Portability.** Under certain circumstances, you may have the right to receive personal information we hold about you in a structured, commonly used, and machine-readable format so that you can provide that personal information to another entity.

(e) **Right Against Discrimination.** You have the right not to be discriminated against for exercising any of the rights described in this section. We will not discriminate against you for exercising your privacy rights.

(f) **Right to Object to Automated Decision-Making.** You may have the right not to be subject to a decision that is based solely on automated processing (where a decision is taken about you using an electronic system without human involvement) which significantly impacts your rights. No decision will be made by us about you solely on the basis of automated decision making which has a significant impact on you.

(g) **Right Not to Provide Consent or to Withdraw Consent**. We may seek to rely on your consent in order to process certain personal information. Where we do so, you have the right not to provide your consent or to withdraw your consent at any time. This does not affect the lawfulness of the processing based on consent before its withdrawal.

(h) **Right to Restriction.** You may have the right to request that we restrict our processing of your personal information in certain circumstance. For instance, this right is available if you contest the accuracy of the personal information, or you objected to our processing.

(i) **Right to Object to Processing**. You may have the right to object to our processing of your personal information at any time and as permitted by applicable law if we process your personal information on the legal bases of: consent, or legitimate interests. However, we may continue to process your personal information if it is necessary for the defense of legal claims, or for any other exceptions permitted by applicable law.

(j) **Right to Appeal.** You may have the right to appeal if we refuse to take action on your rights request. Instructions on how to appeal will be provided to you upon such a denial, but in any event, such instructions will be substantially similar to those provided below for submitting requests.

What Rights Apply

To determine which rights you have, please refer to the table below that references the rights as described above. U.S. States not listed either do not have a law providing such rights, or it does not apply to our operations.

Jurisdiction	Applicable Rights
European Economic Area, United Kingdom and Switzerland (*for individuals located in these jurisdictions when their personal information is collected)*	(a) Right to Know/Access; (b) Right to Correct/Rectification; (c) Right to Delete/Erasure; (d) Right to Portability; (f) Right to Object to Automated Decision-making; (g) Right Not to Provide Consent or to Withdraw Consent; (h) Right to Restriction; and (i) Right to Object to Processing
California Residents.	(a) Right to Know/Access, (b) Right to Correct/Rectification, (c) Right to Delete/Erasure, (d) Right to Portability, (e) Right Against Discrimination, and (f) Right to Object to Automated Decision-making or Profiling (as applicable and upon issuance of ADM regulations by the California Privacy Protection Agency.)
Virginia, Colorado or Connecticut Residents	(a) Right to Know/Access, (b) Right to Correct/Rectification, (c) Right to Delete/Erasure, (d) Right to Portability, (e) Right Against Discrimination (f) Right to Object to Automated Decision making or Profiling, and (g) Right to Appeal.

Submitting a Request to Exercise Your Privacy Rights

To assert your applicable privacy rights, please contact us at Support@vitastudio.ai.. Please note that to protect your privacy and security, we must be able to verify your identity before we can process your request to exercise any of the privacy rights that you may be entitled to under the applicable law. We may ask you to provide information such as your name, contact information, and any additional relevant information based on your relationship with us. Residents of California, Colorado, and Connecticut may designate an authorized agent to submit a request on your behalf to access or delete your personal information. To do so, you must: (1) provide that authorized agent written and signed permission to submit such request; and (2) verify your own identity directly with us. Please note, we may deny a request from an authorized agent that does not submit proof that they have been authorized by you to act on your behalf.

Your Opt-out Rights

If you reside in California, Colorado, Connecticut, or Virginia, you may have the right to opt-out of certain types of processing of your personal information.

(a) **Right to Opt-Out of Sale.** You may have the right to opt-out of the "sale" or "sharing" of your personal information, as defined under applicable laws. We generally do not sell your personal information for profit, but like many businesses, we may use cookies, pixels, and similar technology on our Sites and Services, and we share certain personal information, such as your IP address or device identifiers, with third-party advertisers in order to improve your user experience and to optimize our marketing activities. Under the broad definition of "sell" contained in some jurisdictions' privacy laws, this could be considered a sale.

(b) **Right to Opt-Out of Targeted Advertising.** You may have the right to opt-out of the sharing of your personal information to third parties for behavior or cross-contextual advertising purposes. Like many businesses, we use cookies, pixels, and similar technology on our Services, and we share certain information, such as your IP address or devise identifiers, to certain third-party advertisers in order to improve your user experience and to optimize and personalize our marketing activities. You have the right to direct us not to share or use your personal information for targeted advertising purposes.

To exercise your right to opt-out of sales and targeted advertising, please click the "Do Not Sell or Share My Personal Information" link in the website footer and click the opt-out link contained within. Please note that, if you do not have an account with us or if you are not logged into your account, your request to opt-out of sale/sharing will be linked to your browser identifier only and not linked to any account information because the connection between your browser and the account is not known to us. Additionally, you may still receive generalized ads after opting out of targeted advertising.

[You may also opt-out of sharing and sales by using an opt-out preference signal for each participating browser system that you use. The Global Privacy Control signal is currently the only opt-out preference signal we can recognize. You can visit the Global Privacy Control official site at https://globalprivacycontrol.org/#about to learn how to configure your device to send such signals. We will honor and process the opt-out preference signal in a frictionless manner. Please note that the opt-out choice will only apply to your use of our Sites through the current browser or device you are using and only so long as that browser's cookies are not erased. You will need to submit a separate opt-out of sharing request on each device and browser you use to visit our Sites to completely opt-out using this method. Please note that you may still receive generalized ads after opting out of targeted advertising.]

6. **Security**

We take the security of your personal information very seriously. We strive to adopt reasonable measures designed to protect your personal information from unauthorized access, disclosure, use, alteration, and corruption or loss. We shall take reasonable measures to protect your personal information and to ensure the accuracy and timely update of the personal information collected about you.

Please understand that due to the nature of the internet industry, it is impossible to ensure that systems are 100% secure. You should understand that the systems may encounter issues due to the factors beyond our control, such as malicious actors. We also depend on you to keep your account information and other personal information secure by keeping your password confidential and taking precautions to keep others from accessing your account. In the event that we are required by law to inform you of a breach to your personal information we may notify you electronically (e.g., via email we have on file for you or via a posting on our website or digital properties), in writing, or by telephone, if required or permitted to do so by law.

7. **Transfers of Your Personal Information**

We are an international organization operating in Hong Kong. When you access or use our Services, your personal information may be processed in Hong Kong, the People's Republic of China, or any other country in which we, our Affiliates, or service providers maintain facilities. Such countries or jurisdictions may have data protection laws that are less protective than the laws of the jurisdiction in which you reside. If you do not want your information transferred to, processed, or maintained outside of the country or jurisdiction where you are located, you should immediately stop accessing or using the Services.

If you are in the European Economic Area, the United Kingdom, or Switzerland, please refer to the section below entitled **Additional Notice to Individuals in the European Economic Area, United Kingdom, and Switzerland**.

8. **Retention**

In general, we keep your information for as long as necessary to achieve the purposes stated in this Policy or to comply with the applicable law. Otherwise, we will try to delete your personal information upon your request or when we no longer need it for the purposes it was originally collected, although we reserve the right to retain such information indefinitely for the establishment or defense of legal claims, audit, or fraud and/or crime prevention purposes. We will not delete any personal information about individuals other than yourself, unless such other individual also wishes to delete their personal information at the same time.

We recognize that retention requirements can vary between jurisdictions, but we generally apply the retention periods described below.

- **Account information:** We will retain information associated with your account as long as your account remains active or as necessary to provide you with the requested services.
- **Information collected from tracking technologies:** we generally retain such information for as long as necessary for usage analytics, the establishment or defense of legal claims, audit, or fraud and/or crime prevention purposes.
- **Marketing data:** Any contact information you provide to us for marketing purposes, such as your name, email address, and phone number, is retained on an on-going basis until you unsubscribe from our marketing communications. If you unsubscribe, we will add your contact information to our do-not-contact list to respect your unsubscribe request.

9. Children

Our Services are not intended for use by children under the age of sixteen (16). We will not knowingly collect personal information directly from children under the age of sixteen (16) without parental consent. If you are under the age of sixteen (16), please do not provide us with information of any kind whatsoever. We encourage parents and guardians to spend time with their children online and to be familiar with the websites they visit. If you have reason to believe that we may have accidentally received information from a child under the age of sixteen (16), please contact us immediately according at Support@vitastudio.ai.

10. California Consumer Privacy Notice

If you are a California resident, this section applies to you in addition to the rest of this Privacy Policy. The California Consumer Privacy Act, as amended by the California Privacy Rights Act (together, “CCPA”) requires us to disclose the following additional information related to our privacy practices.

a) Categories of Personal Information Collected, Used, and Disclosed

In the preceding 12 months, depending how you interact with our Services, we may have collect the following categories of personal information (as defined under Cal. Civ. Code §1798.140(v)(1)):

- **Identifiers** such as a name, address, unique personal identifier, email, phone number, your device’s IP address, software, and identification numbers associated with your devices;
- **Commercial information** such as records of products or services purchased, obtained, or considered by you, transaction records, and payment information;
- **Internet or other electronic information** regarding you browsing history, search history, the webpage visited before you came to our Site, length of visit and number of page views, click-stream data, locale preferences, your mobile carrier, date and time stamps associated with transactions, and system configuration information;
- **Geolocation data**, to the extent you have configured your device to permit us to collect such information;
- **Audio or Visual information**, such as audio recordings of your voice to the extent you call us, as permitted under applicable law; and
- **Inferences drawn from any of the information listed above**, such as your shopping preferences, characteristics, and behavior.

We generally do not collect protected classifications about our users, biometric information, professional or employment-related information, or education-related information. For more information about the personal information we collect and how we collect it, please refer to Section 1 above.

b) Purposes for Colleting and Using Categories of Personal Information

We collect and use your personal information for the following business purposes:

- Performing services, including maintaining or servicing accounts, providing customer service, processing or fulfilling orders and transactions, verifying customer information, processing payments, providing financing, providing analytics services, providing storage or similar services;
- Providing advertising and marketing services;
- Auditing related to counting ad impressions to unique visitors, verifying positioning and quality of ad impressions, and auditing compliance;
- Helping to ensure security and integrity;
- Debugging to identify and repair errors that impair existing intended functionality;
- Short-term, transient use, such as non-personalized advertising shown as part of your current interaction with us;
- Undertaking internal research for technological development and demonstration; and
- Undertaking activities to verify or maintain the quality or safety of a service or device that is owned, manufactured, manufactured for, or controlled by us, and to improve, upgrade, or enhance the service or device that is owned, manufactured, manufactured for, or controlled by us.

For more information about the purpose of collecting and using the categories of personal information listed above, please refer to Section 2 above.

c) Sale or Share of Personal Information

We may share or sell your identifiers, device information, demographic information and geolocation to advertising networks, and our business partners. To exercise your right to opt-out of sales and targeted advertising, please click the “Do Not Sell Or Share My Personal Information” link in the website footer. Please note that you may still receive generalized ads after opting out of targeted advertising.

You may also opt-out of sharing and sales by using an opt-out preference signal. The Global Privacy Control signal is currently the only opt-out preference signal we can recognize. You can visit the Global Privacy Control official site at https://globalprivacycontrol.org/#about to learn how to configure your device to send such signals.

d) Retention of Personal Information

We retain your information for as long as your account is active, as needed to provide you Services or for other purposes stated in this Policy, or as required or permitted by applicable law. For more information about the criteria for retaining personal information listed above, please refer to Section 8 above.

e) Your Right to Limit Use of Sensitive Information

If you are a California resident, to the extent your sensitive personal information (as that term is defined under the CCPA) is used to infer characteristic about you, you have the right to direct us to stop such processing of your sensitive personal information for such purposes. We do not process any sensitive personal information to infer characteristics about you without your consent.

f) Shine the Light

In addition to the CCPA, California's "Shine the Light" law, Civil Code section 1798.83, requires certain businesses to respond to requests from California residents asking about the businesses' practices related to disclosing personal information to third parties for the third parties' direct marketing purposes. Alternately, such businesses may have in place a policy not to disclose personal information of customers to third parties for the third parties' direct marketing purposes if a California customer has exercised an option to opt out of such information sharing. We have such a policy. If you want to opt out of any such sharing of your information, please contact us using the information below.

g) Do Not Track

Your browser may allow you to adjust your browser settings so that “do not track” requests are sent to the websites that you visit. However, since uniform standards for “DNT" signals have not been adopted, we do not disable tracking technology that may be active on the Sites in response to any “do not track” requests that we receive from your browser.

11. Additional Notice to Individuals in the European Economic Area, United Kingdom, and Switzerland

This section only applies to individuals located in the European Economic Area, United Kingdom, or Switzerland (collectively, the “Designated Countries”) at the time of data collection.

We may ask you to identify which country you are in when you use or access some of the Services, or we may rely on your IP address to identify which country you are located in. When we rely on your IP address, we cannot

apply the terms of this section to any individual that masks or otherwise hides their location information from us so as not to appear located in the Designated Countries. If any terms in this section conflict with other terms contained in this Policy, the terms in this section shall apply to individuals in the Designated Countries.

h) Our Relationship to You

We are a data controller with respect to any personal information collected from individuals accessing or using our Services. A “data controller” is an entity that determines the purposes for which, and the manner in which any personal information is processed. Any third party that acts as our service provider or is otherwise acting on our behalf is a “data processor” that handles your personal information in accordance with our instructions.

i) Legal Bases for Processing Your Personal Information.

Below is a list of the purposes described in this Policy with the corresponding legal bases for processing.

Purpose for Processing	Legal Bases for Processing
Section 2: How We Use Your Personal Information ● 2(a) To Provide Our Services ● 2(c) To Send You Service-Related Communications ● 2(i) To Enforce Compliance with Our Terms, Agreements and Policies Section 3: How We Share Your Personal Information ● 3(a) Within Our Corporate Organization ● 3(b) With Our Service Providers.	Based on our contract with you or to take steps at your request prior to entering into a contract.
Section 3: How We Share Your Personal Information ● 3(e) With Your Consent	Based on your consent.
Section 2: How We Use Your Personal Information ● 2(h) To Maintain Legal and Regulatory Compliance Section 3: How We Share Your Personal Information ● 3(d) Legal Obligations and Safety	Based on our legal obligations.
Section 2: How We Use Your Personal Information ● 2(e) To Ensure Security of our Services Section 3: How We Share Your Personal Information ● 3(d) Legal Obligations and Safety	To protect your vital interests.
Section 2: How We Use Your Personal Information ● 2(b) To Personalize Your Experience	2(b) and 2(g) - Based on our legitimate interests in understanding our users and providing tailored services. 2(d) - Based on our legitimate interests in making our website

• 2(d) To Conduct Analytics and Other Internal Purposes • 2(f) To Conduct Research and Development • 2(g) To Promote Our Services Section 3: How We Share Your Personal Information • 3(c) Merger, Acquisition, or Other Business Transaction • 3(d) Legal Obligations and Safety	operate efficiently. 2(f) - Based on our legitimate interests in developing new products and improving existing products. 3(c) - Based on our legitimate interest in maintaining our business operations. 3(d) - Based on our legitimate interest in detecting and preventing fraud.

j) Marketing

We will only contact you if you are located in the Designated Countries by electronic means (including email or SMS) based on our legitimate interests, as permitted by applicable law or with your consent. If you do not want us to use your Personal Information in this way, please click the unsubscribe link at the bottom of any of our email messages to you or contact us at the email at the bottom of this page. You can object to direct marketing at any time and free of charge.

k) Transfer of Your Personal Information

We transfer your personal information subject to appropriate safeguards as permitted under the relevant data protection laws. The transfer of your personal information out of the Designated Countries is necessary for the performance of our contract with you, or the performance of a contract between us and another party that we entered into for your interest, or for important reasons of public interest. When transferring your personal information out of a Designated Country, we rely on legal transfer mechanisms such as Standard Contractual Clauses.

l) Right to Lodge Complaints.

If you reside in the Designated Countries you may have the right to lodge a complaint with your national data protection authority or equivalent regulatory body. You can find details of EEA Supervisory Authorities here: https://edpb.europa.eu/about-edpb/board/members_en. The Supervisory Authority in the UK is the Information Commissioner's Office (ICO).

12. Service Providers and Partners

We use third parties to help us operate and improve our Services. These third parties assist us with various tasks, including hosting and maintenance, on-going development, analytics, customer care, marketing, advertising. We may also share information with advertising partners who distribute advertising in our Services.

a) Advertising networks and their partners

The below companies assist us by providing services relating to advertising and marketing. If you reside in the European Economic Area ("EEA"), the advertising networks, analytics providers, and other companies listed below may collect or receive device information from our apps on your browser or device for advertising purposes, including personal and non-personal information, such as advertising (or ad) identifiers, IP address, or other information regarding the delivery of advertisements and your interaction with them, the inventory of installed apps and/or other tracking technologies to provide measurement services, personalization, ad selection, delivery, reporting, and optimize targeted ads. Ad identifiers are non-permanent device identifiers such as the Android advertising ID and/or Apple's ID for advertising (IDFA). For more information on how to opt-out of advertising, please see the "How To Manage Tracking Technologies" section above. In addition, the advertising networks listed below, with the exception of Fyber, Mobfox, and PubNative, who act as data processors upon our instructions, are independent data controllers in respect of your personal information and you can learn more about how each handles your data or provides opt-outs by accessing their respective privacy notices using the hyperlinks below.

Company Name	Brief Introduction	Privacy Policy

AppLovin	AppLovin is an advertising service provided by AppLovin Corporation. (US)	https://www.applovin.com/privacy
Chartboost	Chartboost is an advertising service provided by Chartboost, Inc. (US)	https://answers.chartboost.com/en-us/articles/200780269
Facebook Audience Network	Facebook Audience Network is an advertising service provided by Facebook, Inc. (US) that may collect or receive information from our apps and other apps and use that information to provide measurement services and targeted ads. Facebook does not require opt-in or opt-out signals from users in our services. Relevant signals are collected directly from the user upon creating an account in such Services.	https://www.facebook.com/about/privacy/
Fyber	Fyber is an advertising service provided by Fyber Group. (Israel)	https://www.fyber.com/legal/privacy-policy/
Display.io	Display.io is an advertising service provided by Display.io. INC (US)	https://www.display.io/privacypolicy/
Google AdMob and their partners	AdMob by Google is provided by Google Inc. (US)	http://www.google.com/policies/privacy/ For more information on AdMob Partners, please visit: https://support.google.com/admob/answer/9012903 You can opt-out from AdMob by Google service by following the instructions described by Google: https://support.google.com/ads/answer/2662922?hl=en
Google AdSense	Google, as a third-party vendor, uses cookies to serve ads on our Service. Google's use of the DoubleClick cookie enables it and its partners to serve ads to our users based on their visit to our Service or other websites on the Internet.	You may opt-out of the use of the DoubleClick Cookie for interest-based advertising by visiting the Google Ads Settings web page: http://www.google.com/ads/preferences/
IronSource	IronSource is an advertising service provided by IronSource, Inc. (US) and does not require opt-in or opt-out signals from users in our Services, since they provide only non-personalized ads in our Services.	http://www.ironsrc.com/wp-content/uploads/2017/01/ironSource-Privacy-Policy.pdf
MoPub and their partners	MoPub is provided by MoPub, Inc. (US)	http://www.mopub.com/legal/privacy/ For more information on MoPub Partners, please visit: https://www.mopub.com/legal/partners/ You can opt-out from MoPub service by following the instructions on MoPub Opt-out page: http://www.mopub.com/optout/

Smaato and their vendors	Smaato is an advertising service provided by Smaato, Inc. (US)	https://www.smaato.com/privacy/ --- For more information on the Smaato Vendors, please visit: https://www.smaato.com/partner-list/
Unity Ads	Unity Ads is an advertising service provided by Unity Ads Inc. (US)	https://unity3d.com/legal/privacy-policy
Vungle	Vungle is provided by Vungle, Inc. (US)	http://vungle.com/privacy/
Mintegral	Mintegral is provided by Mintegral International Limited(China)	https://www.mintegral.com/en/privacy/
Pangle	Pangle is provided by ByteDance Pte. Ltd. (Singapore)	https://ad.oceanengine.com/union/media/privacy
Yandex	Yandex is provided by Yandex Europe AG (Russia)	https://yandex.com/legal/confidential/
Pubmatic	Pubmatic is provided by Pubmatic, Inc (US)	https://pubmatic.com/legal/privacy-policy/
Amazon	Amazon is provided by Amazon.com, Inc. (US)	https://www.amazon.com/gp/help/customer/display.html?nodeId=468496
BidMachine	BidMachine is provided by BidMachine, Inc. (US)	https://bidmachine.io/privacy-policy/
MyTarget	MyTarget is provided by My.com B.V. (Netherlands)	https://legal.my.com/us/mytarget/privacy/
A4G	A4G is an advertising service by Ad4Game Ireland Limited	https://www.a4g.com/privacy
InMobi	InMobi is an advertising service provided by InMobi PTE Ltd (Singapore)	https://www.inmobi.com/privacy-policy/

Yahoo and partners	Yahoo, previously known as Verizon Media/Oath, is an advertising service provided by Yahoo Ad Tech LLC (USA)	https://legal.yahoo.com/us/en/yahoo/privacy/index.html For more information on Yahoo partners, please visit: https://legal.yahoo.com/ie/en/yahoo/privacy/topic/ourpartners/index.html
ReklamUp	ReklamUp is an advertising service provided by Arsus Technologies Ltd (TURKEY)	https://reklamup.com/privacy.php

b) Analytics and other service providers

We use your information to perform our own analytics and to enable analytics provided by third parties and other essential functions. We use analytical information for supporting business analysis and operations, business intelligence, product development, improving the Services, personalizing content, providing advertising, and making recommendations. In order to learn about how your information is used by our analytics service providers, you can follow the hyperlinks in the list below to each provider's privacy notice.

Company Name	Brief Introduction	Privacy Policy
AWS	AWS is a cloud computing service provided by Amazon Web Services, Inc. (US).	https://aws.amazon.com/privacy/
Facebook Analytics	Facebook Analytics is an analytics tool provided by Facebook, Inc. (US) that may collect or receive information from our apps and other apps and use that information to provide measurement services.	https://www.facebook.com/about/privacy/
Firebase	Firebase is an analytics service provided by Google Inc. (US). You may opt-out of certain Firebase features through your mobile device settings.	http://www.google.com/intl/en/policies/privacy/
Google Analytics	Google Analytics is an analytics service provided by Google Inc. (US)	https://policies.google.com/privacy
Appsflyer	Appsflyer Analytics is an analytics service provided by Appsflyer Ltd. (Israel)	https://www.appsflyer.com/privacy-policy

13. **Contact Us**

For any questions regarding our Privacy Policy or our privacy practices, please contact us at

Support@vitastudio.ai